



INFORMAL DOCKET NO. 2034(I)

CLAIMANT:

Sealink do Brasil

A private corporation established under Brazilian law, with its principal place of business at:
Rua Domingos Martins 121, Sala 903, Centro, Canoas, State of Rio Grande do Sul,
Zip 92010-170, Brazil
Andre Moreira is the founder and authorized representative of the company.

RESPONDENT:

Hapag-Lloyd AG

A corporation organized under German law, with principal offices at:

Ballindamm 25, 20095 Hamburg, Germany

and U.S. operations at:

Hapag-Lloyd USA LLC

399 Hoes Lane, Suite 102, Piscataway, NJ 08854, USA

Hapag-Lloyd is subject to the jurisdiction of the Federal Maritime Commission under the Shipping Act of 1984, as amended.

I. Claimant Identity

Sealink do Brasil is a corporation organized and existing under the laws of Brazil. The company operates solely as a destination handling agent for ocean freight shipments and is not a contracting carrier or shipper of record on the ocean bills of lading involved in this claim.

II. Respondent Identity

Hapag-Lloyd AG is a vessel-operating common carrier engaged in ocean transportation in foreign commerce of the United States and is subject to the jurisdiction of the Federal Maritime Commission.

III. Nature of the Claim

This claim arises from the imposition of unjust and unreasonable demurrage charges by Hapag-Lloyd in connection with an inbound shipment to Brazil involving



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a private importer of household goods (HHG). The importer was an individual passenger who defaulted on payment, making recovery at destination unfeasible.

The shipment was booked by **Asstra NY Inc.**, a licensed NVOCC (FMC License No. 026243NF), and not by the claimant. Sealink do Brasil acted solely as the handover agent at destination and held no contractual responsibility for the ocean transportation or related charges under the bill of lading.

Despite this, Hapag-Lloyd refused to redirect billing to the booking party and instead threatened to block Sealink's access to their systems and initiate legal proceedings unless payment was made. Faced with commercial dependency on Hapag-Lloyd for unrelated shipments, the claimant was left with no viable option but to comply under protest.

To avoid litigation, Sealink was compelled to sign a formal legal agreement, under pressure, which included the application of 10% interest. The charges were eventually paid in full, yet **Sealink's system access remains blocked to this day**, causing ongoing commercial harm.

This Small Claims Complaint seeks full reimbursement of all amounts paid under coercion, for charges that were never contractually or commercially the claimant's responsibility.

IV. Challenged Practices

This is not merely an overcharge dispute but a claim for reimbursement of demurrage charges improperly imposed on a non-contractual party. The practices challenged include:

- Charging demurrage to a non-contractual party (handling agent);
- Refusing to redirect billing to the actual booking party (Asstra NY Inc.);
- Using threats of system blocking and litigation to compel payment;
- Forcing execution of a legal payment agreement under duress;
- Applying interest on disputed amounts.

V. Shipment and Payment Details

- **Booking Party:** Asstra NY Inc.
- **Destination:** Brazil
- **Bills of Lading:** MBL HLCUBSC2402BEKI1; HBL AST2240158



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- **Invoices:** 2013796334, 2013942976, and 2013974230
- **Original Amount of Charges:** USD 25,228.00
- **Total Paid (with interest):** USD 29,096.26
- **Paid by:** Sealink do Brasil

The payment was made in **seven installments** between October 2024 and June 2025, with interest applied to the later payments due to delays caused by financial hardship.

VI. Damages

Sealink do Brasil suffered direct financial loss due to Hapag-Lloyd's refusal to address the issue with the contracting party, Asstra. The forced agreement and installment payments — including interest — strained the claimant's cash flow, disrupted operations, and caused unjust enrichment for the carrier.

All amounts were paid under protest and are now subject to this recovery claim.

VII. Violation of the Shipping Act

Hapag-Lloyd's conduct constitutes a violation of **46 U.S.C. § 41102(c)** for failure to observe just and reasonable practices in the handling and billing of property, including:

- Charging a party not contractually bound;
- Ignoring documented operational barriers;
- Leveraging coercive tactics to extract payment;
- Enforcing an interest-bearing agreement executed under pressure.

VIII. Authorization of Informal Procedure

The undersigned authorizes the FMC Settlement Officer to adjudicate this claim pursuant to the informal procedure outlined in **Subpart S (46 CFR §§ 502.301–502.305)**.

Attachments:

1. Signed Verification


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2. Exhibit 1 – Payment Schedule
3. Exhibit 2 – Hapag-Lloyd Invoices
4. Exhibit 3 – Master and House Bills of Lading
5. Exhibit 4 – Proof of Payments
6. Exhibit 5 – Correspondence with Hapag-Lloyd
7. Exhibit 6 – Copy of Signed Legal Agreement

Date: June 24, 2025

Signature: Andre Moreira / CEO

Sealink do Brasil

Rua Domingos Martins 121, Sala 903, Centro – Canoas – RS – 92010-170 – Brazil

Email: amoreira@sealinkbrasil.com.br

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**ANDRE LUIS PORTO
MOREIRA:63326426020**

Assinado de forma digital por ANDRE
LUIS PORTO MOREIRA:63326426020

Dados: 2025.06.24 16:20:25 -03'00'

1º TAB. CANOAS

JOSÉ FLÁVIO BUENO FISCHER

TABELIAO DESIGNADO

Rua Gonçalves Dias, 66 Canoas - RS - 92010-050 - Fone: (51) 3472.5344

1º TABELIONATO DE
CANOAS



Reconheço **AUTÊNTICA** a firma de **ANDRÉ LUIS PORTO MOREIRA** indicada com a seta. Selo: 0099.01.2400001.99188
EM TESTEMUNHO

VERDADE.

Canoas, 30 de junho de 2025 151

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Guilherme Decarli
Escrevente

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